

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELTON INTERACTIVE, INC.
Complainant

VERSUS

FLEXPORT INTERNATIONAL LLC,
Respondent

EXPEDITED RELIEF REQUESTED

**RESPONDENT’S REQUEST FOR EXPEDITED HEARING ON CLARIFICATION OF
ORDER DATED JUNE 30, 2025**

COMES NOW, Respondent, Flexport International, LLC (“Flexport”), by and through the undersigned counsel, and hereby requests an expedited hearing to for clarification of a single issue raised in the Order dated June 30, 2025 [Doc. 72] and states as follows:

Expedited relief is requested herein based upon the deadline for compliance of 15 days set forth in the Order.

Specifically, the Order requires Flexport to provide all responsive documents to Peloton’s Request for Production # 4 which included:

All Documents and records in connection with the Peloton Shipments, including all contracts and agreements, service agreements with Ocean Carriers, negotiated service arrangements (NSAs), negotiated rate arrangements (NRAs), freight invoices, bills of lading, waybills, Documents and Container management data, Motor Carrier work orders, Motor Carrier invoices, Motor Carrier bills of lading, linehaul bills of

lading, freight invoices, Demurrage and Detention invoices, Marine and Inland Terminal data and records, railroad records, Motor Carrier records, and payment records.

However, the subject Request had been significantly narrowed by ALJ Crovella at the Status Conference held on March 25, 2025, the subsequent in the Order on same [Doc. 47], and as subsequently acknowledged by Complainant both in the Joint Status Report filed on April 4, 2025 [Doc. 50], and its unauthorized Status Report dated June 6, 2025 [Doc. 67].

Specifically, the Request was revised to seek only communications between Flexport and third parties, and was to specifically exclude all contracts, invoices and payments between Flexport and such third parties. In the Joint Status Report, submitted April 4, 2025, Peloton specifically advised the ALJ as to the outstanding issues to be ruled upon in its Motion to Compel. Peloton identified Request for Production # 4, but commented: **“In accordance with the March 26 Order, Peloton is solely seeking the underlying communications between Flexport and the underlying service providers.”** [Doc. 50 at p. 5, n. 5].

In its unauthorized Status Report, Peloton also focused solely on the communications. Indeed, the Order dated June 30, 2025 discusses Complainant’s Motion to Compel response to Request # 4 solely in this context as well. [Doc. 72 at p. 13]. However, the Order then recites the entire Request # 4 and Orders Flexport to provide all responsive documents.

With the utmost respect, Flexport seeks clarification that the Order pertains solely to the correspondence and not to the documents which have previously been excluded from production by ALJ Crovella as acknowledged by Peloton.

Given that the deadline to respond is only 14 days away, Flexport respectfully requests a brief hearing to resolve this matter, as full briefing would not be possible before the deadline.

CERTIFICATION OF CONFERENCE

The undersigned certifies that on June 30, 2025 he attempted to contact counsel for Peloton to seek their agreement with the request set forth herein, and again on July 1, 2025. Counsel for Peloton does not agree with the relief requested herein and responded only “We believe the order is clear and that a clarification is not necessary”.

Dated: July 1, 2025

Respectfully submitted,

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak
Robert M. Borak, Esq.
Andrew Spector, Esq.
3250 Mary Street, Suite 405
Miami, FL 33133
Tel: (305) 537-2000
Fax: (305) 537-2001
robert.borak@spectorrubin.com
andrew.spector@spectorrubin.com
***Counsel for Respondent,
Flexport International LLC***

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on July 1, 2025 a true and correct copy of the foregoing was served *via email* to all counsel of record in this matter.

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak
Robert M. Borak, Esq.